(iii) Judicial Enthusiasm, that is, the judges like to participate in the social reforms that take place in the changing times. It encourages the Public Interest Litigation and liberalises the principle of 'Locus Standi'.

(iv) Legislative Vacuum, that is, there may be certain areas, which have not been legislated upon. It is therefore, upon the court to indulge in judicial legislation and to meet the changing social needs.

(v) The Constitution of India has itself adopted certain provisions, which gives judiciary enough scope to legislate or to play an active role.

Similarly, Subhash Kashyap observes that certain eventualities may be conceived when the judiciary may have to overstep its normal jurisdiction and intervene in areas otherwise falling within the domain of the legislature and the executive:[5]

(i) When the legislature fails to discharge its responsibilities.

(ii) In case of a 'hung' legislature when the government it provides is weak, insecure and busy only in the struggle for survival and, therefore, unable to take any decision which displeases any caste, community, or other group.

(iii) Those in power may be afraid of taking honest and hard decisions for fear of losing power and, for that reason, may have public issues referred to courts as issues of law in order to mark time and delay decisions or to pass on the odium of strong decision-making to the courts.

(iv) Where the legislature and the executive fail to protect the basic rights of citizens, like the right to live a decent life, healthy surroundings, or to provide honest, efficient and just system of laws and administration.

(v) Where the court of law is misused by a strong authoritarian parliamentary party government for ulterior motives, as was sought to be done during the emergency aberration.

(vi) Sometimes, the courts themselves knowingly or unknowingly become victims of human, all too human, weaknesses of craze for populism, publicity, playing to the media and hogging the headlines.

ACTIVATORS OF JUDICIAL ACTIVISM

Upendra Baxi, an eminent jurist, has delineated the following typology of social/human rights activists who activated judicial activism[6]:

1. **Civil Rights Activists:** These groups primarily focus on civil and political rights issues.
2. **People Rights Activists:** These groups focus on social and economic rights within the contexts of state repression of people's movements.
3. **Consumer Rights Groups:** These formations raise issues of consumer rights within the framework of accountability of the polity and the economy.
4. **Bonded Labour Groups:** These groups ask for judicial activism is nothing short of annihilation of wage slavery in India.
5. **Citizens for Environmental Action:** These groups activate an activist judiciary to combat increasing environmental degradation and pollution.